

Seller's Closing Statement

Kachemak Bay Title Agency, Inc., Kachemak Bay Title Agency, Inc., Kachemak Bay Title Agency, Inc.
3733 Ben Walters Lane, Suite 1, Homer, AK 99603, (907) 235-8196

Seller(s)Anchor River RV LLC, P.O. Box 745, Anchor Point, AK 99556

Buyer(s)Kyllonen's RV Park, LLC, P.O. Box 1049, Anchor Point, AK 99556

Lender(s)

Property74160 Anchor Point Rd. Anchor Point, Alaska 99556
NHN NSN Alaska

Section Number 5Township 05S, Range 15W				
Closing Date	10/9/2025	Disbursement Date	10/9/2025	Proration Date 10/9/2025
			Debit	Credit
Sales/Price				
Contract sales price				\$276,000.00
Additional Credits				
Earnest Money deposit from Anchor River RV LLC				\$500.00
Prorations				
County taxes 10/3/2025 to 1/1/2026				\$356.18
Other Adjustments				
Owner Finance			\$151,000.00	
EM paid to seller			\$5,000.00	
Payoffs				
Payoff of first mortgage loan to HV Kyllonen			\$179,948.47	
Title Charges				
Settlement or closing fee to Kachemak Bay Title Agency, Inc.			\$703.25	
Owner's title insurance to Kachemak Bay Title Agency, Inc.			\$1,273.00	
Owner's title policy limit \$276,000.00				
Sales Tax on Closing Fee to Kachemak Bay Title Agency, Inc.			\$39.25	
Shipping & Handling to Kachemak Bay Title Agency, Inc.			\$30.00	
RON-Online Notary Fee to Kachemak Bay Title Agency, Inc.			\$99.00	
Recording Fees/Transfer Charges				
Deed \$30.00 Mortgage \$60.00 Releases to Kachemak Bay Title Agency, Inc.			\$90.00	
		Subtotal:	\$338,182.97	\$276,856.18
		Balance due from Seller:		\$61,326.79
		Totals:	\$338,182.97	\$338,182.97

Amount to wire in \$61,326.79

HUD-1 CERTIFICATION

ACKNOWLEDGMENT OF RECEIPT OF SETTLEMENT STATEMENT

I have carefully reviewed the HUD-1 Settlement Statement and to the best of my knowledge and belief, it is a true and accurate statement of all receipts and disbursements made on my account or by me in this transaction. I further certify that I have received a copy of the HUD-1 Settlement Statement.

I hereby authorize the Settlement Agent to make expenditures and disbursements as shown above and approve same for payment.

Seller(s):

ANCHOR RIVER RV LLC

X David Driggers
David Driggers, Member

Buyer(s):

KYLLONEN'S RV PARK, LLC

Hunter Stewart, Sole Member

The HUD-1 Settlement Statement which I have prepared is a true and accurate account of this transaction. I have caused or will cause the funds to be disbursed in accordance with this statement.

Kachemak Bay Title Agency, Inc.

Settlement Agent Lisa Ravenscroft Escrow
Officer

Date

WARNING: It is a crime to knowingly make false statements to the United States on this or any other similar form. Penalties upon conviction can include a fine and imprisonment. For details, see: Title 18 U.S. Code Sections 1001 and 1010.

Kachemak Bay Title Agency, Inc.

3733 Ben Walters Lane, Suite 1

Homer, AK 99603

Tel: (907) 235-8196 Fax: (907) 235-2420

DESIGNATION AGREEMENT

To: **Kachemak Bay Title Agency, Inc.**

Escrow No.: 40391
Seller(s): Anchor River RV LLC
Seller Address: P.O. Box 745, Anchor Point, AK 99556
Buyer(s): Kyllonen's RV Park, LLC
Buyer Address: P.O. Box 1049, Anchor Point, AK 99556

LEGAL DESCRIPTION:

Those parcels located in the Northeast one-quarter of the Southeast one-quarter (NE1/4SE/4) in Section 5, Township 5 South, Range 15 West, Seward Meridian, Homer Recording District, Third Judicial District, State of Alaska, more particularly described as follows:

PARCEL 1:

Starting at the 1/4 corner common to Sections 4 and 5, in Township 5 South, Range 15 West, of Seward Meridian, go South 837 feet along said section line to center of exiting roadway; thence North 75° 41' West along center of said roadway 460 feet to the true point of beginning; thence North 67° 50' West along center of said roadway 384 feet to a point; thence North 22° 10' East 200 feet to a point; thence South 67° 50' East 328 feet to a point; thence Southwesterly to the true point beginning at the center of the roadway.

PARCEL 2:

From the 1/4 common to Sections 4 and 5, Township 5 South, Range 5 West, Seward Meridian, go South 0° 05' East 837 feet to centerline of existing roadway; thence Northwesterly along the centerline of said roadway 368 feet to the true point of beginning; thence North 0° 5' West 205 feet to a point; thence North 67° 50' West 54 feet to a point; thence in a Southwesterly direction 200 feet to center of said existing roadway; thence Southeasterly along centerline of said roadway 92 feet to true point of beginning.

74160 Anchor Point Rd., Anchor Point, AK 99556

The parties herein acknowledge that Kachemak Bay Title Agency, Inc. is hereby designated as the party responsible for filing a 1099 with the IRS to report the above real estate transaction.

Dated: October 10th, 2025

Seller(s):

ANCHOR RIVER RV LLC

X

David Driggers

David Driggers, Member

Buyer(s):

KYLLONEN'S RV PARK, LLC

Hunter Stewart, Sole Member

SETTLEMENT AGENT: Kachemak Bay Title Agency, Inc.

Lisa Ravenscroft

INFORMATION FOR REAL ESTATE 1099-S REPORT FILING
as Required by the Internal Revenue Service

SOLICITATION

Section 6045 of the Internal Revenue Code, as amended by the Tax Reform Act of 1986, requires the reporting of certain information to the IRS on real estate transactions. You are required by law to provide Kachemak Bay Title Agency, Inc. with your correct taxpayer identification number. If you do not provide Kachemak Bay Title Agency, Inc. with your correct taxpayer identification number, you may be subject to civil or criminal penalties imposed by law.

File Number 40391

Taxpayer I.D. or S.S. Number X 446-92-1617

SELLER NAME (If Sellers are married and file a joint return, use one name and social security number only.)

Last _____ First & Middle _____

Other (Name of Entity) Anchor River RV LLC

PERMANENT MAILING ADDRESS

Street P.O. Box 745

City Anchor Point State Alaska

Zip Code 99556

TRANSACTION INFORMATION

Closing Date (MMDDYY) _____

Description of Property 74160 Anchor Point Rd., Anchor Point, AK 99556 and NHN Anchor Point Rd., AK
(Street Address or Brief Form of Legal)

Contract Sales Price \$276,000.00

County, City and School Taxes paid in advance by seller, charged to buyer _____

If multiple Sellers - Request is hereby made that you allocate the sales price amount among the sellers _____

Has the seller received (or will receive) property (other than cash and consideration treated as cash) or services as part of the consideration of this transaction? _____ (Yes or No)

Are you a foreign person (non-resident alien, foreign partnership, foreign estate or foreign trust)? _____ (Yes or No)

CERTIFICATION

Under penalties of perjury, I certify that the number shown on this form is my correct Taxpayer Identification Number. I also certify that the other information shown herein is correct. I acknowledge receipt of a copy of this form.

Date: October 10th, 2025

ANCHOR RIVER RV LLC

X David Driggers
David Driggers, Member

SETTLEMENT AGENT INFORMATION

File No.: 40391
1099S Report Filing Seller 1

Kachemak Bay Title Agency, Inc.
3733 Ben Walters Lane, Suite 1
Homer, AK 99603
(907) 235-8196

Taxpayer I.D. Number 92-0062725

SUBSTITUTE FORM 1099

This is important tax information and is being furnished to the Internal Revenue Service. If you are required to file a return, a negligence penalty or other sanction will be imposed on you if this item is required to be reported and the IRS determines that it has not been reported.

Kachemak Bay Title Agency, Inc.

3733 Ben Walters Lane, Suite 1

Homer, AK 99603

Tel: (907) 235-8196 Fax: (907) 235-2420

JOINT ESCROW INSTRUCTIONS

To: **Kachemak Bay Title Agency, Inc.**

Escrow No.: 40391

LEGAL DESCRIPTION:

Those parcels located in the Northeast one-quarter of the Southeast one-quarter (NE1/4SE/4) in Section 5, Township 5 South, Range 15 West, Seward Meridian, Homer Recording District, Third Judicial District, State of Alaska, more particularly described as follows:

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We hand you herewith a Warranty Deed executed by Anchor River RV LLC seller herein, to, Kyllonen's RV Park, LLC buyer herein, for the sum of **\$276,000.00**.

payable as follows:

\$5,000.00 earnest money has been paid and retained by Anchor River RV LLC.

Remaining balance plus closing costs as shown on the closing statements to be paid at the time of closing.

You are hereby authorized to deliver and record all of said documents and disburse funds, together with any additional funds including the proceeds of any loan deposited with you, when you can issue your Standard Form Policy of Title Insurance in the amount of \$276,000.00 insuring title to the above captioned property to be vested as set forth above. Should a document(s) be recorded after signing these instructions but before recordation of these documents, **Kachemak Bay Title Agency, Inc.** shall not be required to perform its obligation hereunder until both parties execute amended instructions. Said Policy of Title Insurance to be issued SUBJECT TO: The usual printed exceptions and stipulations contained in said policy; right of way, easements and reservations now of record or ascertainable by physical inspection; and items numbered 1-10, 13-14, 16 as shown on the Preliminary Commitment for Title Insurance No. **40391** issued by Kachemak Bay Title Agency, Inc., dated September 16, 2025.

The undersigned acknowledge to have reviewed the foregoing Preliminary Commitment for Title

X 

SELLER

SELLER

SELLER

SELLER

BUYER

BUYER

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BUYER

Insurance and protective covenants, if any, fully understand the contents, and accept title to said real estate notwithstanding the existence of such exceptions. The undersigned hereby acknowledge that all documents deposited herein have been reviewed and approved.

You are not to be charged with liability with respect to the title and encumbrances on personal property, including, but not limited to personal property taxes, sales taxes and conditional sales contracts or chattel mortgages on equipment such as refrigeration, ranges, etc.

Kachemak Bay Title Agency, Inc. shall not be liable for the compliance with any Alaska Statutes regarding smoke detector devises, or installation of such devices, or liable for determining that the parties to this escrow have complied with the requirements of the Truth in Lending, Consumer Credit Protection Act (Public Law 90-321), Real Estate Disclosure Act, or similar law.

Parties to this transaction acknowledge that all required disclosures have been given outside of this closing. **Kachemak Bay Title Agency, Inc.** is not responsible for determining if all disclosure requirements have been met.

The parties agree to not hold **Kachemak Bay Title Agency, Inc.** responsible in any way for the condition of the above-captioned property; for the suitability of the property for habitability; for any failure of the property to comply with environmental or pollution laws; for any failure of the property to meet the "minimum Property Standards and Standards Deviation" as described in a15 ACC 118.269, including failure of water and waste water systems which may serve the residence; for location of improvements with respect to lot lines; and for compliance with zoning and setback requirements.

Kachemak Bay Title Agency, Inc. shall not be liable as to the accuracy of the balances and information quoted by the lending institutions, escrow agents, taxing authorities and fire insurance agencies with regarding to assumptions and payoffs.

It is understood that water and utility charges will be adjusted between the parties outside of escrow.

Kachemak Bay Title Agency, Inc. is hereby released of all liability for the failure of the bank to accept the Escrow Agreements prepared in this escrow. It is agreed that if said escrow or collection is rejected, **Kachemak Bay Title Agency, Inc.** is to release all papers to the Seller herein and it will then be the responsibility of the parties to the escrow as to where payments will be collected and documents held.

You are instructed to prorate and adjust the following:

(X) Taxes: 2025 taxes due the Kenai Peninsula Borough.

THE PARTIES HEREIN ACKNOWLEDGE THE PRORATION OF TAXES AS DESCRIBED ABOVE IS BASED ON THE MOST CURRENT INFORMATION AVAILABLE AT THIS TIME. THE PARTIES HEREIN APPROVE AND ACCEPT SAID PRORATION OF TAXES AND ACKNOWLEDGE THERE SHALL BE NO FURTHER PRORATION OF TAXES THROUGH THIS ESCROW.

Kachemak Bay Title Agency, Inc. ASSUMES NO LIABILITY FOR DELIVERY OF TAX BILLS FROM THE TAXING AGENT TO THE RESPONSIBLE PARTIES; THE ACCURACY OF THE TAX ASSESSMENT; OR THE PROPERTY IMPROVEMENTS ASSESSED.

You are instructed to pay all encumbrances of record against said premises, on statement of holder or holder's representative, except none.

Parties hereto agree that these instructions constitute the final agreement between the parties and acknowledge by execution hereof that all contingencies prior to closing of this transaction have been met or waived or otherwise arranged between the parties outside this escrow, and further agree that **Kachemak Bay Title Agency, Inc.** may rely upon said statement in the closing of this escrow; are satisfied with the final closing figures; and hold **Kachemak Bay Title Agency, Inc.** harmless from any liability should a dispute arise at a later date.

X 

SELLER

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SELLER

SELLER

BUYER

BUYER

BUYER

BUYER

These Escrow Instructions are executed for the purpose of enabling **Kachemak Bay Title Agency, Inc.** to complete this transaction, but are in no way intended to modify, amend or in any change that certain agreement and any amendments thereto executed by and between the parties. You are not to be concerned with any of the provisions of said agreement not incorporated herein.

These instructions are effective until revoked by written demand on you from the undersigned, or any one of them, at which time the Buyer and Seller will pay all charges in connection herewith, but in the absence of such demand you will proceed with these instructions as soon as possible. Any amendment of or supplements to any instructions or provisions contained herein must be in writing by the undersigned.

The undersigned understand that **Kachemak Bay Title Agency, Inc.** will not advise them with respect to legal issues. Should a dispute arise between any of the parties involved, **Kachemak Bay Title Agency, Inc.** may, at its discretion, deposit the total contents of this escrow in the Superior court for a resolution of the dispute, with **Kachemak Bay Title Agency, Inc.** to be held harmless from liability, and its costs and attorney's fees of such action to be paid by the parties signed below.

WE, THE UNDERSIGNED BUYERS, ACKNOWLEDGE THAT WE HAVE RECEIVED AND REVIEWED THE PRELIMINARY COMMITMENT FOR TITLE INSURANCE REFERENCED ABOVE AND HEREBY APPROVE THE LEGAL DESCRIPTION AND EXCEPTIONS CONTAINED THEREIN.

ALL DOCUMENTS INVOLVED IN THIS TRANSACTION AND TERMS THEREOF, HAVE BEEN EXAMINED AND APPROVED BY THE UNDERSIGNED PARTIES. IT IS UNDERSTOOD THAT ALL MONEY AND DOCUMENTS REQUIRED HEREIN SHALL BE DEPOSITED WITH YOU BEFORE THESE INSTRUCTIONS WILL BE COMPLIED WITH.

ALL PARTIES AGREE TO PROVIDE CORRECTION SIGNATURES OR INITIALS AFTER CLOSING IF NECESSARY TO CORRECT ANY ERRORS OR OMISSIONS THAT MAY BE NOTED BY LENDER OR ESCROW AGENT.

CERTAIN ITEMS SHOWN ON THE SETTLEMENT STATEMENT MAY BE ESTIMATED ONLY AND THE FINAL FIGURES MAY BE ADJUSTED TO ACCOMMODATE EXACT AMOUNTS REQUIRED AT THE TIME OF DISBURSEMENT.

THE CLOSING STATEMENT IS SUBJECT TO A FINAL AUDIT AND IF ANY LEGITIMATE MONETARY ERROR IS DISCOVERED OR ANY ENCUMBRANCES OF RECORD NECESSARY TO CLEAR TITLE ARE DISCOVERED IN ACCORDANCE WITH THESE JOINT ESCROW INSTRUCTIONS, SUCH DIFFERENCES OR PAYMENT ARE TO BE ASSESSED AND IMMEDIATELY COLLECTED FROM OR REFUNDED TO THE PARTIES LIABLE THEREFORE.

We hereby agree to pay costs per closing statement.

Any amendment of or supplements to any instructions or provisions contained herein must be in writing by the undersigned.

As notes to this escrow:

- 1. **Kachemak Bay Title Agency, Inc. is hereby authorized to fill in the interest and payment dates on the Note and Bank Escrow Agreement in accordance with these Escrow Instructions.**

Dated: October 10th, 2025

X 

SELLER

SELLER

SELLER

SELLER

BUYER

BUYER

BUYER

BUYER

Seller(s):

ANCHOR RIVER RV LLC

X David Driggers
David Driggers, Member

Buyer(s):

KYLLONEN'S RV PARK, LLC

Hunter Stewart, Sole Member

SETTLEMENT AGENT: Kachemak Bay Title Agency, Inc.

Lisa Ravenscroft

DATED: October _____, 2025

DD
SELLER
SELLER

SELLER
SELLER

BUYER
BUYER

BUYER
BUYER

INTEREST RATE ACKNOWLEDGEMENT

The undersigned hereby request Kachemak Bay Title Agency, Inc. to close that transaction wherein Anchor River RV LLC is granting a Deed of Trust to Kyllonen's RV Park, LLC securing payment of that Promissory Note in the original amount of \$151,000.00 and dated herein.

The undersigned acknowledge Kachemak Bay Title Agency, Inc., its agents and personnel have made no representation concerning the allowable rate of interest and have no responsibility therefore.

If you have any questions regarding the legally allowable interest rate, you are encouraged to contract an attorney.

Dated this _____ day of October, 2025.

TRUSTOR(S):

KYLLONEN'S RV PARK, LLC

Hunter Stewart, Sole Member

BENEFICIARY(IES):

ANCHOR RIVER RV LLC

X David Driggers 10/10/2025
David Driggers, Member

Kachemak Bay Title Agency, Inc.

3733 Ben Walters Lane, Suite 1

Homer, AK 99603

Tel: (907) 235-8196 Fax: (907) 235-2420

REQUEST FOR FULL RECONVEYANCE

TO: Kachemak Bay Title Agency, Inc.

October 08, 2025

RE: Legal 74160 Anchor Point Rd. Anchor Point, Alaska 99556
 NHN NSN Alaska

 Section Number 5 Township 05S, Range 15W
File No.: 40391

Gentlemen/Madam:

The undersigned Beneficiary is the legal owner and holder of the indebtedness secured by that Deed of Trust;

Dated:	_____
Executed by Trustor:	Kyllonen's RV Park, LLC
Trustee:	Kachemak Bay Title Agency, Inc.
Recorded on:	October _____, 2025
Serial Number:	_____

Of official records in the office of the Recorder, Homer Recording District, Third Judicial District, State of Alaska.

You are hereby requested and directed to discharge all evidence of the indebtedness secured by said Deed of Trust and to reconvey, without warranty, the estate now held by you under the same on the following:

Those parcels located in the Northeast one-quarter of the Southeast one-quarter (NE1/4SE/4) in Section 5, Township 5 South, Range 15 West, Seward Meridian, Homer Recording District, Third Judicial District, State of Alaska, more particularly described as follows:

PARCEL 1:

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ANCHOR RIVER RV LLC

X David Driggers

David Driggers, Member

The Promissory Note or Notes, and any evidences of further and/or additional advances must be presented with this request.

COPY

X Read and Approved

DEED OF TRUST

This Deed of Trust, made this ____ day of October, 2025, between, Kyllonen's RV Park, LLC, whose address is P.O. Box 1049, Anchor Point, AK 99556, herein called TRUSTOR, Kachemak Bay Title Agency, Inc., herein called TRUSTEE, and Anchor River RV LLC, whose address is P.O. Box 745, Anchor Point, AK 99556, herein called BENEFICIARIES:

WITNESSETH; that Trustors GRANT, BARGAIN, SELL and CONVEY to TRUSTEE IN TRUST WITH POWER OF SALE, that property described as:

Those parcels located in the Northeast one-quarter of the Southeast one-quarter (NE1/4SE/4) in Section 5, Township 5 South, Range 15 West, Seward Meridian, Homer Recording District, Third Judicial District, State of Alaska, more particularly described as follows:

PARCEL 1:

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TOGETHER WITH ALL AND SINGULAR the tenements, hereditaments, and appurtenances thereunto belonging, or in anywise appertaining, the rents, issues and profits thereof, SUBJECT, HOWEVER, to the right, power and authority hereinafter given to and conferred upon Beneficiary to collect and apply such rents, issues and profits, to have and to hold the same, with the appurtenances, unto Trustee.

THIS DEED OF TRUST IS MADE FOR THE PURPOSE OF SECURING the performance of each agreement of Trustor herein contained and payment of the indebtedness evidenced by one promissory

note or deed of trust note of even date herewith, in the principal sum of One Hundred Fifty One Thousand Dollars and No Cents **(\$151,000.00)** payable to Beneficiary or order.

A. To protect the security of this Deed of Trust, Trustor agrees:

1. To keep said property in good condition and repair; not to remove or demolish any building thereon; to complete or restore promptly and in good and workmanlike manner any building which may be constructed, damaged or destroyed thereon and to pay when due all claims for labor performed and materials furnished therefore; to comply with all laws affecting said property or requiring any alterations or improvements to be made thereon; not to commit or permit waste thereof; not to commit, suffer or permit any act upon said property in violation of law; to cultivate, irrigate, fertilize, fumigate, prune and do all other acts which form the character or use of said property may be reasonably necessary, the specific enumerations herein not excluding the general.

2. To provide, maintain and deliver to Beneficiary fire insurance with extended coverage, satisfactory to and with loss payable to Beneficiary in an amount not less than the *N/A * Full insurable value. The amount collected under any fire or other insurance policy may be applied by Beneficiary upon any indebtedness secured hereby and in such order as Beneficiary may determine, or at option of Beneficiary the entire amount so collected or any part thereof may be released to Trustor. Such application or release shall not cure or waive any default or notice of default hereunder or invalidate any act done pursuant to such notice.

3. To appear in and defend any action or proceeding purporting to affect the security hereof or the rights or powers of Beneficiary, or Trustees; and to pay all costs and expenses, including cost of evidence of title and attorney's fees in a reasonable sum, in any such action or proceeding in which Beneficiary or Trustee may appear, and in any suit brought by Beneficiary to foreclose this Deed.

4. To pay at least ten days before delinquency, all taxes and assessments affecting said property; when due, all encumbrances, charges and liens, with interest, on said property or any part thereof, which appear to be prior or superior hereto; all costs, fees and expenses of this Trust.

5. To pay immediately and without demand all sums expended by Beneficiary or Trustee pursuant to the provisions hereof, with interest from date of expenditure at Eight Point Five Percent (8.50 %) per annum.

6. Should Trustor fail to make any payment or to do any act as herein provided, then Beneficiary or Trustee, but without obligation so to do and without notice to or demand upon Trustor and without releasing Trustor from any obligation hereof, may make or do the same in such manner and to such extent as either may deem necessary to protect the security hereof, Beneficiary or Trustee being authorized to enter upon said property for such purposes; appear in and defend any action or proceeding purporting to affect the security hereof or the rights or powers of Beneficiary or Trustee; pay, purchase, contest or compromise any encumbrance, charge or lien which in the judgment of either appears to be prior or superior hereto; and, in exercising any such powers, pay necessary expenses, employ counsel and pay his reasonable fees.

B. It is mutually agreed that:

1. Any award or damages in connection with any condemnation for public use of or injury to said property or any part thereof, is hereby assigned and shall be paid to Beneficiary who may apply or release such moneys received by him in the same manner and with the same effect as above provided for disposition of proceeds of fire or other insurance.

2. Beneficiary may make or cause to be made reasonable entries upon and inspections of the property, provided that Beneficiary shall give Trustor notice prior to any such inspection, specifying reasonable cause therefore related to Beneficiary's interest in the property.

3. By accepting payment of any sum secured hereby after its due date, Beneficiary does not waive his right to require prompt payment when due of all other sums so secured or to declare default for failure so to pay.

4. Any forbearance by Beneficiary in exercising any right or remedy hereunder, or otherwise afforded by applicable law, shall not be a waiver of or preclude the exercise of any such right or remedy. The procurement of insurance or the payment of taxes or other liens or charges by Beneficiary shall not be a waiver of Beneficiary's right to accelerate the maturity of the indebtedness secured by this Deed of Trust.

5. At any time or from time to time, without liability therefore and without notice, upon written request of Beneficiary and presentation of this Deed and said note for endorsement, and without affecting the personal liability of any person for payment of the indebtedness secured hereby, Trustee may reconvey all or any part of said property; consent to the making of any map or plat therefore; join in granting any easement thereon; or join in any extension agreement or any agreement subordinating the lien or charge hereof.

6. Upon written request of Beneficiary stating that all sums secured hereby have been paid, and upon surrender of this Deed and said note to Trustee for cancellation and retention and upon payment of its fees, Trustee shall reconvey, without warranty, the property then held hereunder. The recitals in any reconveyance executed under this Deed of Trust of any matters or facts shall be conclusive proof of the truthfulness thereof. The grantee in such reconveyance may be described as "the person or persons legally entitled thereto".

7. As additional security, Trustor hereby gives to and confers upon Beneficiary the right, power and authority, during the continuance of these Trusts, to collect the rents, issues and profits of said property, reserving unto Trustor the right, prior to any default by Trustor in payment of any indebtedness secured hereby or in performance of any agreement hereunder, to collect and retain such rents, issues and profits as they become due and payable. Upon any such default, Beneficiary may at any time without notice, either in person, by agent, or by a receiver to be appointed by a court, and without regard to the adequacy of any security for the indebtedness hereby secured, enter upon and take possession of said property or any part thereof, in his own name sue for or otherwise collect such rents, issues and profits, including those past due and unpaid, and apply the same, less costs and expenses of operation and collection, including reasonable attorney's fees, upon any indebtedness secured hereby, and in such order as Beneficiary may determine. The entering upon and taking possession of said property, the collection of such rents, issues and profits and the application thereof as aforesaid, shall not cure or waive any default or notice of default hereunder or invalidate any act done pursuant to such notice.

8. Upon default by Trustor in payment of any indebtedness secured hereby or in performance of any agreement hereunder, all sums secured hereby shall immediately become due and payable at the option of the Beneficiary. In the event of default Beneficiary shall execute or cause the Trustee to execute a written notice of such default and of his election to cause to be sold the herein described property to satisfy the obligation hereof, and shall cause such notice to be recorded in the office of the recorder or each recording district wherein said real property or some part thereof is situated.

Notice of sale having been given as then required by law and not less than the time required by law having elapsed after recordation of such notice of default, Trustee, without demand on Trustor, shall sell said property at the time and place of sale fixed by it in said notice of sale, either as a whole or in

separate parcels and in such order as it may determine, at public auction to the highest and best bidder for such in lawful money of the United States, payable at time of sale. Beneficiary shall have the right to make an offset bid without cash in an amount equal to or up to the balance owed on the obligation at the time of the sale, including any sums expended by Beneficiary and Trustee under the Deed of Trust with interest, attorney's fees, and costs of sale. Trustee may postpone sale of all or any portion of said property by public announcement at such time and place of sale, and from time to time thereafter may postpone such sale by public announcement at the time fixed by the preceding postponement. Trustee shall deliver to the purchaser its deed conveying the property so sold, but without any covenant or warranty, express or implied. The recitals in such deed of any matters or facts shall be conclusive proof of the truthfulness thereof. Any person, including Trustor, Trustee, or Beneficiary, as hereunder defined, may purchase at such sale.

After deducting all costs, fees and expenses of Trustee and of this Trust, including cost of evidence of title and reasonable counsel fees in connection with sale, Trustee shall apply the proceeds of sale to payment of all sums expended under the terms hereof, not then repaid with accrued interest at Eight Point Five Percent (8.50) percent per annum; all other sums then secured hereby; and the remainder, if any, to the person or persons legally entitled thereto. Trustor shall be liable for and agrees to pay any deficit.

9. Nothing contained herein shall be construed to limit the right of Beneficiary to foreclose this Deed of Trust by judicial action. Beneficiary shall further be entitled to bring an action upon the note secured by this Deed of Trust without attempting to foreclose this Deed of Trust either by judicial action or by exercise of the power of sale. Specifically, the beneficiary of this deed of trust has the right to sue on the note secured by this deed of trust and obtain a personal judgment against the makers of the note (the trustor under this deed of trust) for satisfaction of the amount due under the note either before or after a judicial foreclosure of the deed of trust under AS 09.45.170 – 09.45.220. Trustor shall be liable for and agree to pay any deficit.

10. This Deed applies to, inures to the benefit of, and binds all parties hereto, their heirs, legatees, devisees, administrators, executors, successors and assigns. The term Beneficiary shall mean the holder and owner, including pledgee, of the note secured hereby, whether or not named as a beneficiary herein, or, if the note has been pledged, the pledgee thereof. In this Deed, whenever the context so requires, the masculine gender includes the feminine and/or neuter, and the singular number include the plural.

11. Trustee accepts this Trust when this Deed, duly executed and acknowledged, is made a public record as provided by law. Trustee is not obligated to notify any party hereto of pending sale under any other Deed of Trust or of any action or proceeding in which Trustor, Beneficiary or Trustee shall be a party unless brought by Trustee.

12. Beneficiary may, from time to time, as provided by statute, appoint another Trustee in place and stead of Trustee herein named, and thereupon, the Trustee herein named shall be discharged and Trustee so appointed shall be substituted as Trustee hereunder with the same effect as if originally named Trustee herein.

13. If two or more persons be designated as Trustee herein, any, or all, powers granted herein to Trustee may be exercised by any of such persons, if the other person or persons is unable, for any reason, to act, and any recital of such inability in any instrument executed by any of such persons shall be conclusive against Trustor, her heirs and assigns.

14. The maturity date of this Deed of Trust and the Deed of Trust Note which is secured hereby is _____, 2036, or earlier if Trustors sell or lease with option to buy the subject real property at which time all amounts secured by this Deed of Trust are immediately due and payable in full.

15. Except for any notice required under applicable law to be given in another manner, (a) any notice to Trustor provided for in this Deed of Trust shall be given by mailing such notice by certified mail addressed to Trustor at the address stated herein or at such other address as Trustor may designate by notice to Beneficiary as provided herein, and (b) any notice to Beneficiary shall be given by certified mail, return receipt requested, to beneficiary's address stated herein or to such other address as Beneficiary may designate by notice to Trustor as provided herein. Any notice provided for in the Deed of Trust shall be deemed to have been given to Trustor or Beneficiary when given in the manner designated herein.

16. All remedies provided in this Deed of Trust are distinct and cumulative to any other right or remedy under this Deed of Trust or afforded by law or equity, and may be exercised concurrently, independently or successively.

17. This Deed of Trust shall be governed by the laws of Alaska. In the event that any provision or clause of this Deed of Trust or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Deed of Trust or the Note which can be given effect without the conflicting provision, and to this end the provisions of the Deed of Trust and the Note are declared to be severable.

KYLLONEN'S RV PARK, LLC

Hunter Stewart, Sole Member

State of _____)
)ss.
County of _____)

THIS IS TO CERTIFY that on this _____ day of October, 2025, before me, the undersigned, a Notary Public in and for the State of Alaska, duly commissioned and sworn as such, personally appeared Hunter Stewart, Sole Member of Kyllonen's RV Park, LLC, known to me and to me known to be the individual described in and who executed the foregoing instrument, and he/she acknowledged to me that he/she signed and sealed the same freely and voluntarily for the uses and purposes therein described.

IN WITNESS WHEREOF, I have hereunto set my hand and official seal the day and year first hereinabove written.

Notary Public for _____
My Commission Expires: _____

Return to:
Anchor River RV LLC
P.O. Box 745
Anchor Point, AK 99556

COPY

Read and Approved

X

DEED OF TRUST NOTE

FOR VALUE RECEIVED, the undersigned, Kyllonen's RV Park, LLC, whose address is P.O. Box 1049, Anchor Point, AK 99556, herein called Payor, promises to pay to the order of Anchor River RV LLC, whose address is P.O. Box 745, Anchor Point, AK 99556, herein called Payees, the principal sum of One Hundred Fifty One Thousand Dollars and No Cents **(\$151,000.00)** together with interest at the rate of Eight Point Five Percent (**8.50 %**) per annum of the balance remaining from time to time unpaid. Interest shall accrue from _____, 2025. The said principal and interest shall be payable to Anchor River RV LLC or at such other place as the holder may designate, in writing, in consecutive MONTHLY installments of One Thousand Eight Hundred Seventy Two Dollars and Eighteen Cents **(\$1,872.18)** and commencing on May 01, 2026, and continuing on the FIRST day of each MONTH thereafter until the principal and interest are fully paid. The entire balance of principal is due in full on or before _____, 2036, or earlier if Payor sells or leases with option to buy the subject real property at which time all amounts secured by this Deed of Trust Note are immediately due and payable in full. There is a late fee of 5% of each past due payment if such payment is received FIVE (**5**) days or more past due. The entire obligation may be fully paid at any time prior to the above schedule without penalty and the undersigned may make payments greater than those listed above.

If default be made in the payment of any installment under this Note, and if such default is not made good within thirty (30) days, the entire principal sum and accrued interest shall become at once due and payable at the option of the holder of this Note. Failure to exercise this option shall not constitute a waiver of the right to exercise the same in the event of any subsequent default. If any suit or action is instituted to collect this Note or any part thereof, the undersigned promise and agree to pay, in addition to the costs and disbursements provided by statute, a reasonable sum as attorney's fees in such suit or action.

This Note is secured by a Deed of Trust, of even date herewith, to Kachemak Bay Title Agency, Inc. as Trustee, on real property described as follows:

Those parcels located in the Northeast one-quarter of the Southeast one-quarter (NE1/4SE/4) in Section 5, Township 5 South, Range 15 West, Seward Meridian, Homer Recording District, Third Judicial District, State of Alaska, more particularly described as follows:

PARCEL 1:

Starting at the 1/4 corner common to Sections 4 and 5, in Township 5 South, Range 15 West, of Seward Meridian, go South 837 feet along said section line to center of exiting roadway; thence North 75° 41' West along center of said roadway 460 feet to the true point of beginning; thence North 67° 50' West along center of said roadway 384 feet to a point; thence North 22° 10' East 200 feet to a point; thence South 67° 50' East 328 feet to a point; thence Southwesterly to the true point beginning at the center of the roadway.

PARCEL 2:

